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Case Number: 26STCP01017 Hearing Date: August 11, 2026 Dept: 731

[TENTATIVE] ORDER RE: RESPONDENTS'

MOTION FOR JUDGMENT ON THE PLEADINGS

Moving Party: Respondents/Defendants, City of Inglewood and City Council of the City of Inglewood

Opposing Party: Petitioner/Plaintiff, Ross Dress for Less, Inc.

Notice: OK

Background Facts

Petitioner/Plaintiff Ross Dress for

Less, Inc. ("Ross") sues Respondents City of Inglewood (the "City"), the City Council of the City of Inglewood (the "Council") (with the City, "Defendants"), and Does 1-100, as well as Real Party in Interest, Elevate Inglewood Partners LLC, pursuant to a March 11, 2026, Verified Petition for Writ of Mandate and Complaint alleging claims of (1) Violation of the California Environmental Quality Act ("CEQA"), (2) Injunctive Relief, and (3) Declaratory Relief.

Ross Dress for Less, Inc. alleges

that the City of Inglewood and its City Council significantly revised a project known as the Inglewood Transit Connector Project ("ITC Project") without conducting the required CEQA review, despite earlier commitments that all modifications would undergo Environmental Impact Report ("EIR") analysis. (See Verified Petition, ¶¶ 13-23, 28-30.) After converting the project into a multi-modal transit system and adding a parking garage on Ross's property without study or public disclosure, the City Council approved a Resolution of Necessity to

condemn Ross's property while jointly relying on an improper, last-minute CEQA exemption to the EIR requirement. (See Verified Petition, ¶¶ 17-21, 23.) Ross asserts that the City and its Council thus reversed their longstanding CEQA position, deprived the public of mandatory environmental disclosure, and acted arbitrarily and capriciously in violation of statutory duties. (See Verified Petition, ¶¶ 20-22, 29-30, 32-35.) The Petition further alleges that the Council's participation amplified public confusion regarding the project's regulatory status and ultimate scope and scale of impacts. (See Verified Petition, ¶¶ 20, 24.) Accordingly, Ross seeks to set aside the approvals, compel full CEQA compliance, and obtain injunctive and declaratory relief as well as attorneys' fees. (Verified Petition, Prayer ¶¶ 1-5.)

Now before the Court is Defendants' opposed, March 11, 2026, motion for judgment on the pleadings against the Complaint's three pleaded counts.

Motion for Judgment
on the Pleadings

Meet and Confer

Initially, the Court notes that the moving papers show that a meet and confer preceded the filing of Defendants' motion, as required by the Code of Civil Procedure. (Motion, Wright Decl., ¶ 2; see Code Civ. Proc., § 439, subd. (a)(3)(A).)

b. Request
for Judicial Notice

The Court takes judicial notice of the documents attached to Defendants' moving papers pursuant to Evidence Code sections 452, subdivision (c), (d), and (h), and 453. (See Motion, Request for Judicial Notice ("RJN"), Exs. A-O.) The Court takes judicial notice only of the existence of these documents, not of the truth of disputed facts asserted therein.

c. Legal
Standard

Either prior to trial or at the

trial—and barring statutory provisions otherwise—the plaintiff or the defendants may move for judgment on the pleadings where the appropriate ground for such a motion is the same as that arguable by general demurrer, namely, the failure to state a cause of action or defense. (*Dobbins v. Hardister* (1966) 242 Cal.App.2d 787, 791 A motion for JOP is used to challenge a pleading in the same manner as a general demurrer—that is, the challenged pleading (1) establishes that the court does not have subject-matter jurisdiction or (2) does not allege facts sufficient to support a cause of action or defense. (Code Civ. Proc., § 438, subd. (c)(1); see *Marzec v. Public Empls. Ret. Sys.* (2015) 236 Cal.App.4th 889, 900; *International Assn of Firefighters v. City of San Jose* (2011) 195 Cal.App.4th 1179, 1196.)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 212, superseded by statute as stated in *Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242.) In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) Courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1162.) However, this analysis “does not admit contentions, deductions or conclusions of fact or law.” (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.) The face of the complaint includes exhibits attached to the complaint. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence. (*Holland v. Morse Diesel Intern., Inc.* (2001) 86 Cal.App.4th 1443, 1447, superseded by statute on other grounds as stated in *White v. Cridlebaugh* (2009) 178 Cal.App.4th 506, 521.)

As with a demurrer, the grounds for a motion for judgment on the pleadings must appear on the face of the pleading or be based on facts capable of judicial notice. (*Bufile v. Dollar Fin. Grp.* (2008) 162 Cal.App.4th 1193, 1202, disapproved on other grounds in *Noel v. Thrifty Payless, Inc.* (2019) 7 Cal.5th 955, 985-986, fn. 15.) The only significant difference between the two motions is that a motion for judgment on the pleadings is brought after the time to file a general demurrer has expired.

(Code Civ. Proc., § 438, subd. (f); *Caldera Pharms. v. Regents of the Univ. of Cal.* (2012) 205 Cal.App.4th 338, 350; *International Assn of Firefighters v. City of San Jose*, supra, at p. 1196.)

Discussion

Here, Defendants' moving papers argue that, on motion for judgment on the pleadings, (1) the first cause of action fails based on running its statute of limitations, as shown by implication from juxtaposition of the Complaint to the contents of judicially noticed documents, (2) the first cause of action fails based on insufficiency of pleading, as shown by implication from juxtaposition of the Complaint to the contents of judicially noticed documents, and (3) the second and third causes of action are derivative of the first cause of action and thus fail. (Motion, pp. 12-17 [limitations arguments], 18-19 [sufficiency argument], 19 [derivative second and third claims argument].)

From this summary, it is clear that the underlying support that crosses through all Defendants' motion's arguments is the juxtaposition of the Complaint to contents of judicially noticed documents.

After review, and on similar reasoning to that argued in Ross's opposition (see Opposition, pp. 10-12), the Court determines that, under the circumstances before the Court, Defendants' arguments cannot stand as premised on judicial notice and fail on motion for judgment on the pleadings.

Defendants have submitted fifteen exhibits in support of their motion for judgment on the pleadings. (See Motion, RJN, Exs. A-O.) Although the Court has properly taken judicial notice of these materials, Defendants improperly urge the Court to accept factual inferences from those documents regarding when the limitations period began to run and the sufficiency of the Complaint's allegations. (See, e.g., Motion, 14:15-27 [arguing limitations period is shown to have run by judicially noticed documents].) To this Court, this is not a permissible use of judicial notice.

"Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning." (*Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374.) Indeed, "when judicial notice is taken of a

document, ... the truthfulness and proper interpretation of the document are disputable.” (StorMedia Inc. v. Superior Court (1999) 20 Cal.4th 449, 456, fn. 9.) As courts have emphasized, “utilizing judicially noticed documents in ruling on a demurrer is only proper when the documents are not used to determine disputed factual issues.” (Richtek USA, Inc. v. UPI Semiconductor Corp. (2015) 242 Cal.App.4th 651, 653-654; see Smiley v. Citibank (1995) 11 Cal.4th 138, 145-146 [Courts follow the same guidelines for ruling on a motion for judgment on the pleadings as they do for ruling on a demurrer].)

Here, Defendants ask the Court to draw factual conclusions and resolve disputed issues based on their interpretation of these exhibits, even though Ross’s briefing directly contests those interpretations (see, e.g., Opposition, pp. 12-16), going so far as to argue that Defendants’ authorities in fact support Plaintiff’s position. (See, e.g., Opposition, pp. 16-18.) Consequently, Defendants’ approach amounts to conducting an evidentiary hearing under the guise of a pleading motion, which is improper. (Joslin v. H.A.S. Ins. Brokerage (1986) 184 Cal.App.3d 369, 375 [hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable].)

Moreover, the mere existence of government records does not establish, without supporting evidence, what factual consequences might follow from them. As the courts have cautioned, “the taking of judicial notice of the official acts of a governmental entity does not in and of itself require acceptance of the truth of factual matters which might be deduced therefrom, since in many instances what is being noticed, and thereby established, is no more than the existence of such acts and not, without supporting evidence, what might factually be associated with or flow therefrom.” (Cruz v. County of Los Angeles (1985) 173 Cal.App.3d 1131, 1134.) Likewise, “while courts take judicial notice of public records, they do not take notice of the truth of matters stated therein.” (Herrera v. Deutsche Bank National Trust Co. (2011) 196 Cal.App.4th 1366, 1375.)

In sum, Defendants attempt to transform judicially noticed documents into evidence establishing contested factual conclusions, which is inconsistent with the limited purpose of judicial notice and, to this Court, exceeds what may be considered on a motion for judgment on the pleadings.

e. Conclusion

Because resolution of Defendants' arguments requires the Court to draw disputed factual inferences from judicially noticed documents, the motion is not appropriate for determination on a motion for judgment on the pleadings.

Defendants City of Inglewood and City Council of the City of Inglewood's motion for judgment on the pleadings is accordingly DENIED.

Defendants City of Inglewood and City Council of the City of Inglewood are ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.